GOVERNMENT & POLICY

Google spared from ad-business breakup, but judge orders changes to how it operates

Lucas Ropek 2:38 PM PDT · September 2, 2026

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The Justice Department has spent years attempting to break up Google's gargantuan advertising business across two separate antitrust lawsuits: one filed in 2020 focused on Google's dominance in search, and a second filed in 2023 that specifically targeted Google's ad-technology business. Both cases argued that the search giant's grip on the digital ad economy represents an illegal monopoly.

Courts have largely sided with the government in both cases. In 2024, a court determined that Google's search business, including its exceedingly lucrative search-ad operation, was an illegal monopoly, claiming that the tech giant had "exercised its monopoly power" to dominate the search industry and search ads. Last April, a second court case — this one focused specifically on Google's ad-tech business — also came to the same conclusion.

Following the 2024 ruling, Justice Department officials suggested a variety of ways Google's search business could be broken up, including divesting its Chrome browser and Android operating system. But in September 2025, the judge overseeing that case, Amit Mehta, rejected those divestiture requests, ruling that Google could keep both Chrome and Android. He did order the company to end exclusive default-placement deals and share certain search data with competitors (remedies that Google is currently appealing).

That same pattern held this week. In a ruling handed down on Wednesday, federal judge Leonie M. Brinkema of the Eastern District of Virginia, who oversaw the ad-tech case, said that Google would be able to keep its advertising business. Instead of selling it, the search giant will instead be required to adjust its business practices to favor competitors, Brinkema said. The New York Times notes that the judge's ruling "did not provide specifics" as to how Google should go about doing that.

Brinkema's full written ruling will remain under seal for 14 days to allow those involved to issue necessary redactions. Her finding that Google had acted illegally in maintaining its ad-tech business dates back to April of last year; this week's decision addressed only the remedy.

Unsurprisingly, Google framed the outcome as a win. Lee-Anne Mulholland, Google's vice president for regulatory affairs, told

TechCrunch: “We’re very pleased the Court rejected the DOJ’s proposal to break apart tools that help small businesses reach new customers and grow.”

The online advertising ecosystem is notoriously opaque and byzantine and, for most people unfamiliar with its complexities, difficult to grasp. Much of the government’s ad-tech case against Google revolved around the company’s tactics to ensure that its search engine was the default engine in devices across the world, which in turn helped its ad business dominate as well.

To do this, Google used exclusive agreements with device manufacturers, which made it the default search engine across huge swaths of the mobile phone market, the government has argued. Google also entered into revenue sharing agreements with mobile carriers — deals where carriers earned a cut of ad revenue in exchange for keeping Google as the default — that further cemented its position as the de facto search engine across phone markets.

Topics: Google Government & Policy Search

Lucas Ropek

Senior Writer, TechCrunch

Lucas is a senior writer at TechCrunch, where he covers artificial intelligence, consumer tech, and startups. He previously covered AI and cybersecurity at Gizmodo. You can contact Luca...

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